

# EU II: Institutions of the EU (AUW)

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Political Science — Master Notes · by Jakob V. Stangel

**Required reading:** Bulmer, Parker, Bache, George & Burns (2020), *Politics in the European Union*, 5th ed., OUP — **ch. 12, "The Institutional Architecture"** (pp. 205–237). (Built *deck-first*, then enriched from Bulmer ch. 12 — which supplies the treaty basis (TEU/TFEU & the "Union method"), the *contested* Commission right of initiative, fuller QMV rules, the advisory bodies (EESC/CoR), the *budgetary procedure*, national parliaments' subsidiarity "cards", CFSP machinery, and *enhanced cooperation*. Marked (Bulmer) where a point is reading-only.)

**Theme of the lecture.** This lecture maps the **institutional and legal machinery** behind the EU's **multi-level governance**: *who does what* (propose, decide, implement, enforce), *how* a decision becomes binding EU law, and *why* the shape of the architecture matters — it varies by policy area and it is exactly where the two theories from EU I (liberal intergovernmentalism vs neofunctionalism) fight it out. Three questions structure it: **Where is EU authority?** · **How does the EU make & enforce decisions?** · **Why does the architecture matter?**

★ **The heart of the lecture:** EU authority is **pooled, delegated and shared** across levels (EU ↔ member state) and across **bodies that each represent a different interest**. The "typical" way a law is made: **Commission proposes → Parliament + Council co-decide (the Ordinary Legislative Procedure, usually by Qualified Majority) → member states implement → Commission + CJEU enforce**. But this model **changes across policy areas** (some stay intergovernmental, e.g. foreign policy) and membership is **differentiated** (euro, Schengen).

**Red thread:** the split between **supranational** bodies (Commission · Parliament · CJEU) and **intergovernmental** bodies (European Council · Council) is the institutional form of the **neofunctionalism-vs-LI** debate.

**Key concepts to apply:** *pooled / delegated / shared authority · supranational vs intergovernmental bodies · the right of initiative · Ordinary Legislative Procedure (co-decision) · Qualified Majority Voting (55% / 65%) · conferral · subsidiarity · proportionality · exclusive / shared / supporting competence · regulations · directives · decisions · positive vs negative integration · mutual recognition (Cassis de Dijon) · differentiated integration.*

## Where is EU authority?

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**Core:** there is **no single sovereign** in the EU. Authority to **propose, decide, implement and enforce** is **distributed** — **pooled** (states decide together), **delegated** (handed to a common body), and **shared** — across **two levels** and several bodies.

- **Two levels:**
  - **EU level:** European Council · European Commission · Council of the EU · European Parliament · Court of Justice of the EU (CJEU).
  - **Member-state level:** national governments · legislatures · administrations · courts.

- *In plain terms*: the EU isn't a government sitting "above" the states; it's a **system** in which the same task (making and enforcing a rule) is split among European bodies *and* national ones. This is what "**multi-level governance**" means.

## | The EU is governed by treaty — TEU & TFEU (*Bulmer*)

**Core**: the EU has **no constitution**; its authority comes entirely from **treaties** the states signed. Since the **Lisbon Treaty (in force December 2009)** there are **two**: the **TEU** (Treaty on European Union) and the **TFEU** (Treaty on the Functioning of the EU). Every EU act must cite the **treaty article** ("Treaty base") that authorises it.

| Treaty      | What it sets out                                                                                                                                                                                                                        |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>TEU</b>  | the <b>broad principles</b> (democracy...), the <b>general role of the institutions, who may join and how a state may leave</b> (Art. 50 — new in Lisbon), and the <b>CFSP</b> ( <i>kept largely outside the Court's jurisdiction</i> ) |
| <b>TFEU</b> | the <b>detailed operation</b> of the institutions and <b>all other policy areas</b> — Bulmer calls this the " <b>Union method</b> " (the updated name for the old "Community method")                                                   |

- **Lisbon abolished the "three-pillar" structure** (1993–2009: (1) European Community, (2) CFSP, (3) Justice & Home Affairs). Everything except **CFSP** was merged into a single order run by the **Union method**; **CFSP stays distinctively intergovernmental** (see why the architecture matters).
- **Why it matters**: because power flows from the treaty base, *which article a proposal is built on* decides *which procedure and voting rule* apply — so the **choice of legal base is itself a site of conflict** (see the 1990 maternity-rights dispute).

## | The five EU bodies — each represents a different interest

**Core**: the genius (and the tension) of the design: each institution is built to **represent a different constituency**, so EU decisions have to reconcile them. Learn this table cold — it's the backbone of the whole lecture.

| Body                                         | Who sits there                                                        | Whose interest it represents                             | Core role                                                |
|----------------------------------------------|-----------------------------------------------------------------------|----------------------------------------------------------|----------------------------------------------------------|
| <b>European Council</b>                      | heads of state/government (27) + its President + Commission President | <b>national governments</b><br>— the top political level | sets <b>strategic direction</b> (not a legislator)       |
| <b>Council of the EU</b><br>("the Council")  | national <b>ministers</b> (by policy area)                            | <b>member-state governments</b>                          | <b>co-legislates</b> ; coordinates national policy       |
| <b>European Parliament (EP)</b>              | directly elected <b>MEPs</b>                                          | <b>EU citizens</b>                                       | <b>co-legislates</b> + <b>oversight</b>                  |
| <b>European Commission</b>                   | Commissioners + the EU civil service                                  | the <b>Union-wide</b> general interest                   | <b>proposes</b> law; <b>implements</b> ; <b>enforces</b> |
| <b>CJEU</b>                                  | judges                                                                | the <b>EU legal order</b>                                | <b>interprets &amp; adjudicates</b> EU law               |
| ( <i>watchdog</i> ) <b>Court of Auditors</b> | auditors                                                              | sound use of EU money                                    | <b>audits EU finances</b>                                |

- The **supranational / intergovernmental split** (keep it in view for the theory section): **Commission** • **EP** • **CJEU** are **supranational** (they serve the Union as a whole, above the states); **European Council** • **Council** are **intergovernmental** (they *are* the states). Every EU decision is a negotiation between these two logics.

## The basic architecture — the flow of a decision

**Core:** the bodies fit together in a **rough sequence**: direction → proposal → decision → implementation → enforcement.

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European Council → sets broad political direction
      ↓
European Commission → proposes legislation
      ↓
Council + European Parliament → adopt EU legislation
      ↓
Member-state administrations → implement legislation
      ↓
Commission + CJEU + national courts → monitor, interpret & enforce

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## European Council — governments set the direction

**Core:** the **summit of national leaders**. It is the EU's **political compass**, not its legislature — it decides *where the Union is going*, and unblocks the biggest fights.

- **Who:** the **heads of state or government of the 27**, plus the **European Council President** and the **Commission President**. (*Don't confuse it with the Council of the EU — ministers — or the Council of Europe, a separate non-EU human-rights body from EU I.*)
- **What it does:** defines **broad political priorities**; provides **strategic direction**; **resolves major political disagreements** that ministers can't; gives "**political impetus**" to integration.
- **Why it's the intergovernmental heart:** it is literally the **national governments** in the room. In an LI reading, this is where the states — the "masters of the treaty" — steer.

## European Commission — the engine of EU policy

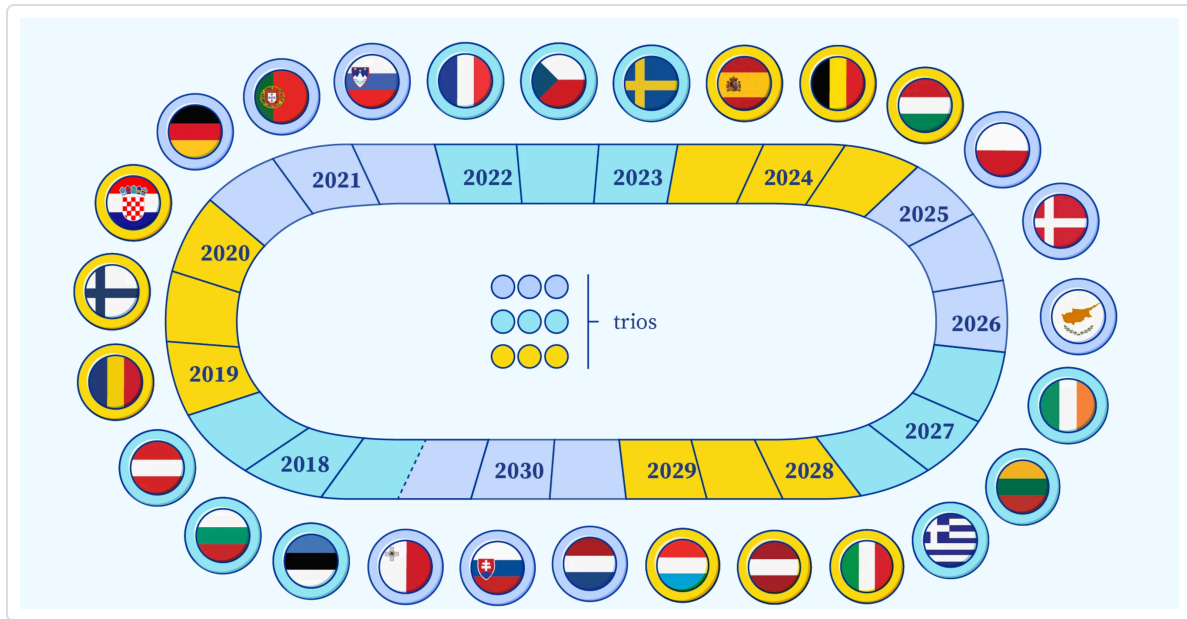
**Core:** the EU's **executive and its motor**. Crucially, it holds the **right of initiative** — it **proposes** almost all EU legislation — and then **implements** and **polices** it. It represents the **Union-wide interest**, not any one country.

- **Four jobs** (PROPOSE · EXECUTE · ENFORCE · REPRESENT):
  1. **Proposes** — **initiates most EU legislation** and develops policy (the **right of initiative** — a huge power: it sets the agenda).
  2. **Executes** — manages EU **programmes and funding**; implements policy.
  3. **Enforces** — monitors compliance and can launch **infringement proceedings** against a state that breaks EU law.
  4. **Represents** — speaks for the EU **internationally** where it has competence (e.g. trade).
- **The right of initiative is contested, not absolute** (*Bulmer — a key debate*). The Commission is *formally* the sole initiator, but the monopoly is hedged: (1) the **European Council** sets the strategic agenda the Commission then follows; (2) the **EP can request a proposal** (Art. 225 TFEU) and is hard to ignore; (3) the **Council can too** (Art. 241); (4) a **Conciliation Committee** can agree a text the Commission didn't write; (5) it always **consults widely** (interest groups, national experts) first. → So "*Commission proposes*" is *real but shared* — an *inter-institutional negotiation*, not a dictate.
- **Guardian of the Treaties.** Beyond proposing, the Commission is the **watchdog** that makes sure states apply EU law — via **infringement proceedings** (Art. 258 TFEU).
- **Why it's the supranational engine:** its whole job is to think for the **Union as a whole**. In a neofunctionalist reading, the Commission is the "**cultivated spillover**" actor — the Eurocrat that pushes integration forward.

## Council of the EU — member states as legislators

**Core:** the **national ministers**, acting as the EU's **other legislative chamber** (alongside the EP). It is **not one fixed group of people** — it changes membership by topic.

- **Who / configurations:** **national ministers** meet in different **configurations by policy area** — Agriculture, Environment, Finance (ECOFIN), Competitiveness, etc. The relevant minister shows up for the relevant dossier.
- **What it does:** represents **member-state governments**; **co-legislates** with the EP; coordinates national policies; decides by **agreed voting rules** (usually **QMV**).
- **The rotating presidency** — in "**trios**." The chair of the Council rotates among member states every **6 months**, organised into **trios** of three countries that plan an 18-month programme together.



*How to read it.* The presidency isn't a person or a permanent seat — it **passes around the member states**, three at a time. Each **trio** (one colour) coordinates an 18-month agenda so priorities carry across the three six-month chairs. It's a concrete emblem of the Council's **intergovernmental, member-state-driven** character.

- **The Council is more than the ministers** (a key exam point): most of the real work happens **below** the ministers, among **diplomats and officials**, *before* ministers ever meet:

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National ministers
    ↑ (formal adoption)
COREPER I & II   (committees of member states' permanent representatives / ambassadors)
    ↑
Working parties + national officials (the technical bargaining)
    ↑
Council Secretariat
  
```

→ "**Much of the bargaining happens among diplomats before ministers meet.**" By the time ministers sign, most issues are already settled. (*This is exactly the "bureaucratic interpenetration" neofunctionalism talks about — national officials in constant contact.*)

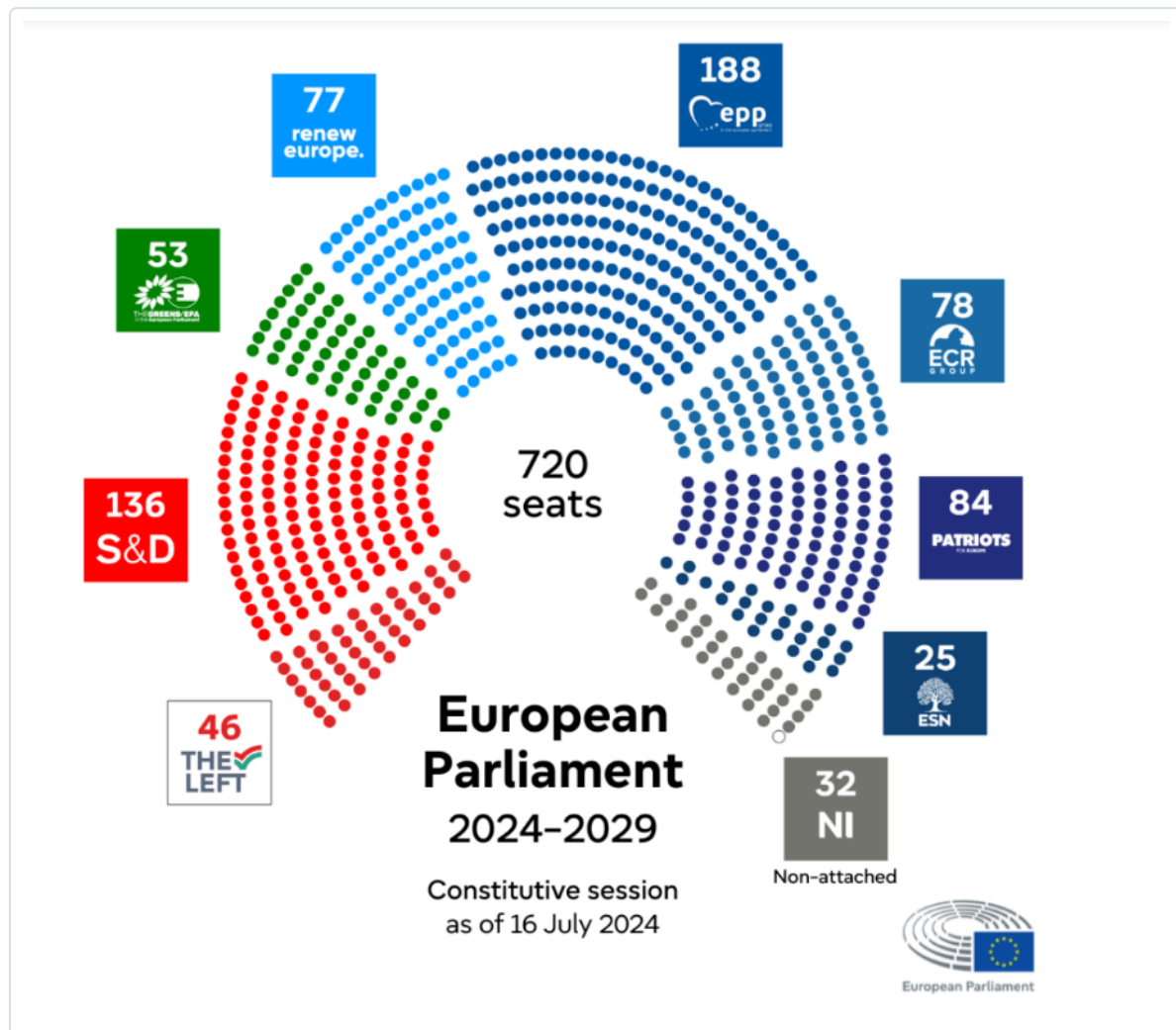
- **In practice the Council prefers *consensus*, even when it could use QMV (Bulmer).** Despite the spread of majority voting, ministers usually decide by **consensus** (Häge 2013). Governments often issue a **public statement of dissatisfaction even when they voted for a measure** — a way to **distance themselves at home** while keeping the consensual norm (Hagemann et al. 2019). → *The formal voting rule and the actual behaviour differ — a nuance the deck's "QMV" bullet hides.*

## European Parliament — citizens enter EU law-making

**Core:** the EU's **only directly elected body** — the citizens' chamber. Once a weak "talking shop," it has **gained real power through successive treaties** and now **co-legislates** as an equal with the Council.

- **Who: MEPs**, directly elected every five years, representing **EU citizens** (organised into cross-national **political groups**, not national delegations — a group needs **≥ 23 MEPs from ≥ 7 states**).

- **What it does:** co-legislates with the Council under the Ordinary Legislative Procedure; can amend or block legislation; oversees the Commission (it approves and can censure it).



*How to read it.* The hemicycle seats MEPs **left-to-right by ideology**, grouped into **transnational political families**, not by country. After the **2024** election the centre-right **EPP (188)** is the largest group, then the centre-left **S&D (136)**; the **centre holds a working majority** (EPP + S&D + Renew) but the **right** (Patriots, ECR, ESN) grew. → *Illustrates that the EP is a genuine, party-political parliament — the "citizens' interest" the deck's table names.*

## | Court of Justice of the EU — authority through law

**Core:** the EU's **supreme court**. By **interpreting the treaties and EU law**, it ensures the law means the **same thing everywhere** — and in doing so it **shapes integration** itself.

- **What it does:** interprets the treaties and EU legislation; ensures **uniform application** across all states; **resolves disputes**; and **draws the boundary** between EU and national authority.
- **Why it matters for integration:** "**courts can shape integration.**" By deciding what EU law requires, the CJEU can push integration forward without any new treaty — the neofunctionalist "integration through law." (Not to be confused with the *European Court of Human Rights*, which belongs to the Council of Europe — see EU I.)



## Two advisory bodies — the EESC & the Committee of the Regions (*Bulmer*)

**Core:** beyond the five, two **consultative committees** have a **right to be consulted** on legislation (they advise, they don't decide). They matter because they bring **civil society** and the **subnational** level into the architecture.

- **European Economic & Social Committee (EESC)** — reps of **employers, workers, and "various interests"** (farmers, consumers, professions...); **329 members**, nominated by governments, sitting in a **personal capacity**. Consulted on social, single-market and related policy — but **not very influential, overshadowed by the elected EP**.
- **Committee of the Regions (CoR)** — reps of **regional & local government**, created by **Maastricht (1994)**. *More* influential than the EESC because it is **backed by powerful actors** — it was created at the insistence of the **German Länder**, worried their national government was signing away *their* powers to Brussels. → The CoR made itself the **champion of "multi-level governance"** (its 2009 White Paper), a natural **ally of the Commission** against central governments — a subnational echo of **cultivated spillover**.

## EU authority rests where the EU has *competence*

**Core:** the EU has **no general power to act** — only the powers the treaties give it, and those come in three strengths.

| Competence        | Who may legislate                                                | Examples                                                                                                                                               |
|-------------------|------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Exclusive</b>  | <b>only the EU</b>                                               | customs union · the single currency · competition rules · common commercial (trade) policy · fisheries conservation · certain international agreements |
| <b>Shared</b>     | <b>EU and member states</b> (states act where the EU hasn't)     | internal market · environment · transport · consumer protection                                                                                        |
| <b>Supporting</b> | member states legislate; the <b>EU only supports/coordinates</b> | culture · education · tourism ( <i>and areas kept largely national — health systems, taxation, defence</i> )                                           |

- **Bulmer's catalogue actually has four heads** (*Insight 12.1, from Arts. 3–6 TFEU*): the three above **plus** a distinct **"policy co-ordination"** category for member states' **economic, employment and social policies** (the EU coordinates but doesn't legislate). (*CFSP sits outside this TFEU catalogue — it's in the TEU.*) Lisbon also spelt the catalogue out for the first time — partly a **German-Länder demand** to stop competence quietly drifting upward.

## Constitutional limits — conferral, subsidiarity, proportionality

**Core:** three principles **fence in** EU power so it can't simply expand at will.

1. **Conferral** — the EU can act **only where the treaties give it competence**. No treaty basis → no EU action. (*The default is that power stays national.*)
2. **Subsidiarity** — in **non-exclusive** areas, the EU should act **only when the objective can't be adequately achieved by member states** acting alone (decisions taken as close to citizens as effective).

3. **Proportionality** — EU action must **not go beyond what is necessary** to achieve its aim (use the lightest tool that works).
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## How does the EU make & enforce decisions?

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### | How an EU law actually gets made — the Ordinary Legislative Procedure

**Core:** the "typical" model, also called **co-decision**: the **Commission proposes**, and the **Parliament and Council must both agree** — as co-equal legislators — before it becomes law.

- **The steps:**
  1. **Commission** — **agenda-setting**: develops and **proposes** the legislation (right of initiative).
  2. **European Parliament + Council of the EU** — examine and **amend** the proposal (each can propose changes).
  3. **Negotiation / readings** — the two co-legislators reconcile their versions (often in "trilogue" with the Commission).
  4. **Agreement** — **both** the EP **and** the Council approve the **same text**.
  5. **Adopted** → **implemented & enforced**.
- **The key feature: Parliament and Council co-decide as equals** — the citizens' chamber and the states' chamber must *both* say yes. Either can **amend or block**. → *This co-equal status is a major **deepening** of supranational democracy won over successive treaties (recall EU I: Maastricht's codecision, extended since).*

### | Qualified Majority Voting (QMV) — how the Council decides

**Core:** in the Council, most decisions pass by **QMV, not unanimity** — a **double majority** of states *and* population. The radical implication: a **national government can be outvoted** and still be bound.

- **The double threshold** — a proposal passes with:
  - **55% of member states** (i.e. at least 15 of 27), **AND**
  - states representing **65% of the total EU population**.
- **Why the two locks:** the **55% of states** protects the **many smaller** countries (one state, one vote); the **65% of population** protects the **few large** ones (Germany, France...). A measure needs **both** kinds of majority. (*A blocking minority therefore needs at least 4 states — so no 3 big states can veto alone.*)
- **Fuller rules & history (Bulmer):** if the proposal is **not** from the Commission the bar is **higher** — **72% of states** (still 65% of population). QMV is now the **default** — "the Council shall act by a qualified majority except where the Treaties provide otherwise" (Art. 16(3) TEU) — the end of a long march that began when the **SEA (1986)** first brought QMV to single-market laws, and that **de Gaulle had blocked** back in the 1965 empty-chair crisis. Every treaty since has **extended** QMV to more areas.
- **Unanimity still rules the sensitive areas** — foreign & security policy, taxation, social security, common defence, operational police co-operation, enlargement, language rules, the seat of the institutions — where every state keeps a veto.



- **Why it matters (the deck's exercise):** under **QMV**, a **Danish farmer's** government can be **outvoted** by a coalition of others — influence depends on building **coalitions**, and small states punch above their weight per capita. Under **unanimity**, *every* government (however small) holds a **veto**, so the **French farmer's** government could block anything it dislikes. → **QMV = supranational** (states can lose); **unanimity = intergovernmental** (states stay in control).

## ■ The OLP is the norm — but not the only procedure (*Bulmer*)

**Core:** Lisbon made the **OLP the default**, but two "**special legislative procedures**" survive where states wanted to keep more control — the EP is weaker in both.

- **Consultation** — the Commission proposes, the **Council must ask the EP's opinion but can then ignore it**, and decides (often by **unanimity**). (*The CJEU's Isoglucose ruling (1980) established the Council must at least wait for the opinion before deciding.*) Now used in only ~20 areas.
- **Consent** (ex-"assent") — the EP **cannot amend**, but its **yes is required** — a **veto**. Main use: **international agreements**, including **accession of new members**, and the multi-annual budget framework.

## ■ National parliaments get a say — the subsidiarity "cards" (*Bulmer*)

**Core:** Lisbon, for the first time, let **national parliaments** police subsidiarity — a **subnational/national check** on the supranational legislative machine.

- **Yellow card:** if enough national parliaments (roughly **one-third**, within **8 weeks**) issue a **reasoned opinion** that a proposal breaches subsidiarity, the Commission must **review** it (and maintain, amend, or withdraw it).
- **Orange card:** a stronger version (a **simple majority** of parliaments) that, if backed by the Council or EP, can **kill** the proposal. **Never used.**
- **The yellow card has been played three times:** the **2012 "right-to-strike" (Monti II)** proposal — Commission **withdrew** it; the **2013 European Public Prosecutor** — Commission pressed on via **enhanced cooperation** (22 states); the **2016 posting-of-workers** directive — Commission found "no case," adopted it (an **East–West split**). → *A real, if limited, brake — evidence for the "subnational component" the lecture flags.*

## ■ The other track — the EU budget (*Bulmer*)

**Core:** alongside legislation, the EU's **money** runs on its own procedure — and it shows the **European Council's agenda-setting power** at its clearest.

- **The multi-annual financial framework (MFF)** — the EU's **~7-year** spending envelope — is proposed by the Commission but **fought out in the European Council and agreed by unanimity**. (*The 2014–20 MFF (~€960 bn): the UK, backed by NL & Sweden, forced real-terms cuts; Merkel brokered the deal.*) Every state has a **veto** on the big number.
- **The annual budget** then follows an **OLP-like cycle**: the **Commission** drafts it, and the **Council + EP co-decide** (via a **Conciliation Committee** if they clash). If no budget by **1 January**, the EU runs on "**provisional twelfths**" (1/12 of last year's budget per month).

- **Discharge:** each year the **EP formally signs off** that the Commission spent the money properly — informed by the Court of Auditors' report. → *Money = where the intergovernmental European Council sets the ceiling and the supranational EP polices the spending.*

## After adoption — who implements? (adoption ≠ implementation)

**Core:** the EU **makes** the rules but rarely **applies** them itself. **Implementation is mostly national** — a defining feature of the EU's "**small state**" design (recall EU I: most EU law is enforced by national officials).



## Not all EU law works the same way — regulations, directives, decisions

**Core:** the EU has **three main legal instruments**, and they create **different relationships** between EU and national authority. Know the differences — a classic exam distinction.

| Instrument        | Binding force                                                                             | National transposition?                                                               |
|-------------------|-------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| <b>Regulation</b> | <b>directly applicable</b> — becomes law in every state <b>as written</b> , automatically | <b>No</b> — no national law needed                                                    |
| <b>Directive</b>  | binding as to the <b>result/objective</b> , but leaves the <b>means</b> to states         | <b>Yes</b> — states must <b>transpose</b> it into national law (choosing <i>how</i> ) |
| <b>Decision</b>   | <b>binding in full</b> on <b>specific</b> addressees (a state, company or individual)     | <b>No</b> — applies directly to whom it names                                         |

- *In plain terms:* a **regulation** is a Union-wide law imposed identically everywhere (strongly supranational); a **directive** sets a goal but lets each state legislate its own route (a softer, more flexible tool); a **decision** is a targeted order. **Different instrument = different degree of central control.**
- **Directives transpose in two stages (Bulmer):** (1) **transposition** into national law, then (2) **application on the ground** by national administrations — and **compliance varies**, which is why the Commission polices it. **Recommendations & opinions** also exist but have **no legal force** (political weight only).
- **Legislative vs non-legislative acts (Lisbon):** not everything binding goes through the full legislative process — e.g. a **Commission competition ruling** fining a company is **legally binding** but non-legislative.

- **Soft law: the Open Method of Coordination (OMC)** (*Bulmer*). Where the EU lacks competence to legislate (e.g. employment, social inclusion), states instead **compare and exchange best practice** and set voluntary targets — no binding law, just peer pressure and learning. (*A governance mode beyond the three legal instruments — "the EU is a very political animal."*)

## Integration through legislation *and* through courts (positive vs negative)

**Core:** the EU integrates in **two ways** — by **building** common rules (positive) and by **striking down** national barriers (negative, often via the CJEU).

- **Positive integration** — EU institutions **create common rules**: legislation, **harmonization**, common standards. (*Building a shared framework.*)
- **Negative integration** — EU law **removes national barriers**: the **CJEU** interprets the treaties so that incompatible national rules **fall away**. (*Clearing obstacles to the four freedoms.*)
- **Landmark case — Cassis de Dijon (1979)**. Germany blocked a French blackcurrant liqueur for being below its minimum alcohol content. The CJEU ruled the barrier illegal and established the **principle of mutual recognition**: a good **lawfully sold in one member state** may in principle be **sold throughout** the EU, even without harmonized rules. → *Illustrates: negative integration through courts* — the CJEU removing a national barrier to **free movement of goods**, deepening the single market without any new legislation. (*A textbook neofunctionalist "integration through law."*)

## Who enforces EU rules?

**Core:** enforcement, like implementation, is **shared** between EU and national actors.

| Enforcer                          | Role                                                                          |
|-----------------------------------|-------------------------------------------------------------------------------|
| <b>European Commission</b>        | monitors member-state compliance; brings <b>infringement proceedings</b>      |
| <b>National authorities</b>       | enforce EU rules <b>domestically</b>                                          |
| <b>National courts</b>            | apply EU law in <b>individual cases</b> (and can refer questions to the CJEU) |
| <b>CJEU</b>                       | <b>authoritative interpretation</b> ; settles legal disputes                  |
| <b>European Court of Auditors</b> | <b>audits EU finances</b>                                                     |

- **The infringement route** (*Bulmer*): if a state breaks EU law, the Commission issues a **reasoned opinion** (Art. 258 TFEU) and, if the state still won't comply, takes it to the **CJEU** — which since Maastricht can impose **financial penalties** (Art. 260). Before Maastricht, a losing state faced only moral pressure.
- **Court of Auditors** (*Bulmer*): created **1975**, based in **Luxembourg**; **one member per state** (6-yr renewable term), **~850 staff** (two-thirds auditors); checks that revenue and spending were **lawful and regular** and publishes an **annual report** — the basis for the EP's **budget discharge**.

## Why does the architecture matter?

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**Core:** the "typical" model (**Commission → EP + Council → law**) is **not universal**. The architecture **shifts by policy area**, and membership itself is **differentiated** — so "the EU" is really several different decision-systems at once.

- **It varies by policy area.** The standard supranational model dominates the **single market** and most regulation. But some areas stay **intergovernmental** — above all the **Common Foreign & Security Policy (CFSP)**:
  - driven by the **European Council + Council** (the member states);
  - **unanimity** generally required;
  - **more limited roles** for Commission, Parliament and CJEU. → *Where the EU is more supranational, integration can run ahead of states; where it's intergovernmental, states stay in charge. Same Union, different rules.*
- **CFSP machinery (Bulmer):** run by the **European Council** (strategy, by unanimity), the **Foreign Affairs Council**, and the **High Representative (HR/VP)** — a **double-hatted** figure who is *also* a **Commission Vice-President** (Ashton → Mogherini → **Borrell**), backed by the EU's own diplomatic service, the **EEAS**. Decisions are mostly **declaratory, non-legislative**; the **CJEU is excluded**.
  - **Escape valves:** "**constructive abstention**" (a state can abstain, not block, and isn't bound); and an **Art. 31(2) TEU safeguard** — a state pleading "**vital reasons of national policy**" stops a QMV vote, kicking it up to the European Council. (*That safeguard is essentially a CFSP-only Luxembourg Compromise.*)
  - **But even here integration creeps:** the **EEAS** throws national and EU diplomats together (socialization), and in **2018 a group of states launched defence cooperation — PESCO** — via enhanced cooperation.

## Differentiated integration — common and varied

**Core:** not every member state participates in every policy the same way. The EU can be **both common and differentiated** — a patchwork, not a uniform bloc.

- **Euro** — **not all** EU members use the single currency (Denmark opted out; others haven't joined).
- **Schengen** — **differentiated** participation in the passport-free travel area (some EU states out; some non-EU states — Norway, Switzerland — in).
- **Enhanced cooperation** — a **group of states can move ahead** in an area without the others.
- **Enhanced cooperation — the rules (Bulmer):** a **minimum of 9 states**, only in **non-exclusive** areas, as a **last resort**, and it must stay **open** for others to join; the resulting acts **bind only the participants** and are **not part of the acquis**. Real uses: the **financial-transaction ("Tobin") tax**, **cross-border divorce law**, the **EU patent** (25 states, minus Italy & Spain), and **PESCO** (defence, 2017). The **Fiscal Compact** (2012, from the euro crisis) is a cousin — a treaty binding **22 states** (the UK & Czechia stayed out), tightening budget monitoring.
- **Two more Lisbon flexibility valves (Bulmer):**
  - **Emergency brake** — in a few sensitive areas (social security, judicial cooperation, CFSP), a state that fears being outvoted can **suspend the procedure and appeal to the European Council** — a

sovereignty escape hatch.

- **Passerelle ("gangway") clauses** — let the Council **switch** an area to QMV/OLP *without* a new treaty (always *toward* supranationalism). Juncker called them "**lost treasure**" (2018) — but they need **unanimity + EP consent**, and **by 2019 had never been used**. → *This flexibility is how a Union of 27 very different states keeps deepening without forcing everyone to move in lockstep — recall the deepening/widening tension from EU I.*

## The architecture as cooperation & conflict (*Bulmer*)

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**Core:** the chapter's analytical frame — and the lecture's stated focus on "**cooperation and conflict** between the EU's supranational, intergovernmental and subnational components." The institutions are **not a clean separation of powers** but a **fusion** of shared functions, held together by cooperation and pulled apart by recurring conflict.

- "**Institutions matter**" (new institutionalism; Keohane) — the formal rules **shape** who wins, which is why the LI-vs-neofunctionalism fight plays out *over the institutions*.
- **A functional division of labour, not Montesquieu:** the **European Council** sets direction (but doesn't legislate), the **Commission** initiates + guards + implements, **Council + EP** co-legislate, **CJEU + Court of Auditors** watchdog. Powers are **shared, not separated**.
- **The European Council has risen to the "apex."** Even though it **cannot legislate**, it now **shapes the context** of nearly everything (agenda, budget ceilings, crisis deals) — "**integration without supranationalisation**" (Fabbrini & Puetter). A strongly **intergovernmental** trend.
- **Cooperation is engineered** through **inter-institutional agreements (IIAs)** and **Conciliation Committees** that keep Commission, Council and EP working together.
- **Conflict is structural** — over **who initiates** (the contested right of initiative), over **the money** (budget hawks vs doves), and over the **legal base**: e.g. in **1990** the Commission built a **maternity-rights** proposal on a **health-&-safety** article (Art. 118A) precisely because that triggered **QMV** rather than unanimity; the UK objected to the base and threatened the CJEU before settling. → *Which treaty article you choose decides the voting rule — so the choice itself is a power struggle.*
- **Formal vs informal:** this is the **formal skeleton**; the **informal** relationships (and the organized interests that lobby at every stage) do much of the real work.

## ★ Integration theories & the institutional architecture

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**Core:** the payoff — the lecture ties the machinery straight back to EU I's two theories. The **supranational vs intergovernmental** split among the institutions **is** the LI-vs-neofunctionalism debate made concrete.



|                     | Liberal Intergovernmentalism     | Neofunctionalism / Supranationalism     |
|---------------------|----------------------------------|-----------------------------------------|
| Key actors          | member-state governments         | supranational bodies & non-state actors |
| Key mechanism       | interstate bargaining            | spillover                               |
| Key EU bodies       | European Council + Council       | Commission + EP + CJEU                  |
| View of integration | stays <b>under state control</b> | can develop <b>beyond</b> state control |

- **How to argue with it** (the deck's exercise — apply each theory to a feature):
  - **QMV in the Council** → *LI*: states **agreed** the rules and still bargain (and kept unanimity for the sensitive stuff); *NF*: accepting you can be **outvoted** is states **losing control** to a supranational majority.
  - **Commission's right of initiative** → *LI*: a convenient agenda-setter serving state-agreed goals; *NF*: the engine of **cultivated spillover**, shaping outcomes.
  - **CJEU + *Cassis de Dijon*** → *NF*: **integration through law**, courts removing barriers autonomously; *LI*: states tolerate it because it serves their **collective** interest in a working market.
  - **CFSP + unanimity** → *LI*: proof states keep the **veto** where sovereignty is dearest; *NF*: the **limit** of spillover — an area still "**encapsulated**."
- **The takeaway**: you can read the **same institution** two ways. The architecture is contested terrain precisely because **whether the supranational or the intergovernmental bodies dominate a policy area** decides whether integration is **state-controlled** or **self-propelling**.

## ★ Fun facts & memorable details (EU II: Institutions)

Sticky bits from the institutions lecture.

- **Three "Councils," endlessly confused** — the **European Council** (leaders, sets direction), the **Council of the EU** (ministers, legislates), and the **Council of Europe** (a *separate* non-EU human-rights body, from EU I). Mixing them up is the classic exam slip.
- **The Commission has the "right of initiative"** — almost **no EU law can start without it**. Whoever sets the agenda has quiet power; that's why neofunctionalists call the Commission the **engine**.
- **A government can be outvoted and still bound** — under **QMV**, lose the vote and the law still applies to you. That single fact is the sharpest evidence that the EU is **more than** an ordinary international organisation.
- **The real deals are cut by diplomats, not ministers** — by the time ministers meet, **COREPER** ambassadors and working parties have usually pre-cooked the agreement. The photographed handshake is often theatre.
- **The presidency is a relay baton, not a throne** — it **rotates every six months** in **trios**; no country "runs" the EU.
- ***Cassis de Dijon*** — a **blackcurrant liqueur** that quietly built the single market: from a squabble over French crème de cassis came **mutual recognition**, one of the most important integration principles, made by **judges**, not legislators.



- **A regulation vs a directive** — a regulation is the same law everywhere the day it passes; a directive just sets the **goal** and lets 27 parliaments each find their own way there. Same Union, very different grip.
  - **National parliaments have a "yellow card"** — and they've played it: in **2012** enough of them killed a proposal touching the **right to strike**, and the Commission **withdrew** it. The stronger "**orange card**"? **Never used.**
  - **Passerelle clauses are "lost treasure"** — Juncker's phrase (2018) for the Lisbon buttons that could switch areas to majority voting **without a new treaty**. Nobody has ever pressed one.
  - **A blackcurrant liqueur built the single market** — *Cassis de Dijon* (1979) gave the EU **mutual recognition**, made by **judges**, not legislators.
  - **The choice of *article* is a weapon** — in 1990 the Commission dressed up **maternity rights** as a **health-&-safety** measure just to get **majority voting** instead of a national veto. Which treaty base you pick decides who can block you.
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